SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 2487 of 2020 (YEAR: 2021)

CORAM: D.Y. CHANDRACHUD, INDU MALHOTRA, INDIRA BANERJEE

IREO Grace Realtech Pvt. Ltd.
... Appellant(s) / Petitioner(s)
Versus
Abhishek Khanna
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986, Real Estate (Regulation and Development) Act, 2016
Sections:	Section 18 RERA, Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Affirmed that remedies under the Consumer Protection Act and RERA are concurrent; flat buyers who received delayed occupancy certificates have right to elect appropriate forum.

RATIO DECIDENDI

The Court held that: Affirmed that remedies under the Consumer Protection Act and RERA are concurrent; flat buyers who received delayed occupancy certificates have right to elect appropriate forum. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in IREO Grace Realtech Pvt. Ltd. v. Abhishek Khanna (Civil Appeal No. 2487 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, Real Estate (Regulation and Development) Act, 2016, particularly Section 18 RERA, Section 14 Consumer Protection. Affirmed that remedies under the Consumer Protection Act and RERA are concurrent; flat buyers who received delayed occupancy certificates have right to elect appropriate forum.

OPERATIVE ORDER

ORDER: Decided